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Specimen Residential Tenancy Agreement
© Dublin Solicitor's Bar Association (DSBA)

2017 Edition
(Revised)

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WARNING: THIS IS A LEGAL DOCUMENT, IF YOU ARE UNSURE OF YOUR OBLIGATIONS UNDER THIS TENANCY AGREEMENT THEN YOU SHOULD TAKE LEGAL ADVICE BEFORE SIGNING THIS TENANCY AGREEMENT.

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This Tenancy Agreement is in the form prepared and approved by the Dublin Solicitors Bar Association for use in short-term residential lettings. No variations or additions have been made to the general letting provisions, save those which appear in the special letting provisions.

RESIDENTIAL TENANCY AGREEMENT

PRIVATE HOUSE OR APARTMENT

NOTICE

No responsibility is accepted by the Dublin Solicitors Bar Association or the authors for errors or omissions in this document. This Tenancy Agreement is intended as a specimen only and should be amended in every case to suit the particular circumstances prevailing. In addition, this specimen reflects the law as of January 2017.

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CONSENTS

SPOUSE'S/CIVIL PARTNER'S CONSENT

I being the Spouse of the Landlord consent pursuant to Section 3 of the Family Home Protection Act 1976 / being the Civil Partner of the Landlord consent pursuant to Section 28 of the Civil Partnership and Certain Rights and Obligations of Cohabitants Act, 2010 to the letting of the Dwelling on the terms of this Tenancy Agreement.

Date:

SIGNED by the said

in the presence of:

The Tenant is reminded that this Tenancy Agreement could be subject to the consent of the Landlords lending institution or other third party. Should this be the case, in the absence of the necessary consents being obtained, the terms of this Tenancy agreement could be rendered unenforceable? As such the Tenant should take legal advice as to procuring all necessary consents prior to entering into this Tenancy agreement.

I acknowledge that I have read this provision prior to signing the Tenancy Agreement

Date:

SIGNED by the Tenant(s)

In the presence of:

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THIS TENANCY AGREEMENTis dated the: 12 February 2022

BETWEEN:

THE LANDLORD: Ardstone Residential Partners Fund ICAV

The Landlord ADDRESS: Riverside One, Sir John Rogersons Quay, Dublin 2.

Name and address of Landlord's Agent (if any): MD Property Management, 38 Upper Baggot street, Dublin 4.

Agent's telephone/mobile/e-mail: Tel: 01 6607803.

Agents' telephone/mobile/e-mail: 01 6607803 storyhouse@mdpm.ie

Agents' Personal Public Service No. (PPSN): 3408831WH

See Management Regulations for further contact details including emergency and out-of-hours contact details.

AND

THE TENANTs:
Tenant's names:

- **Srijan Pandey**
- **Manoj Kumar Shukla**
-

THE DWELLING: APT 13 BLOCK A BEECH PARK, DUBLIN 18 EIRCODE: D18XY9X

THE TERM: 12 -months fixed term

Where a current lease is not in place, the same terms and conditions from the original lease will continue from Month to Month until the tenancy comes to an end. Please note when ending a tenancy, you should refer to the RTB Web site and use their notice template, and you should also have regard to the appropriate notice period to be given, on the RTB website, which is related to the length of occupancy.

SUBJECT TO BREAK CLAUSE: Yes [ ] No [ ] See Clause 5

THE TERM COMMENCEMENT DATE: 1st Day of March 2022 to 28th Day of February 2023

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SECURITY DEPOSIT: **€ 2,250**

Please note that the deposits will be returned when all keys are returned after the final inspection.

Please note that the Pinergy cards to be handed back with all apartments keys.

PET DEPOSIT: **€ n/a**

RENT: **€ 2,250 MONTHLY**

CAR PARKING: (including in the rent) **no**
(Yes/no) €50, 00 Monthly

PAYABLE: **Paid in advance prior to the move in date (proportional from the move in date until the last day of the month) and after that, paid on the First day of each month to the Landlord by standing order direct:**

To:
ARIF Property 4 General Partner acting for and on behalf of ARIF Property 4 Limited Partnership

Bank: Bank of Ireland

Address: Bank of Ireland, Lower Baggot Street, Dublin 2

Account Name: Cabinteely Tenant Collection Account

IBAN Number: IBANIE20BOFI90149016615157

THE LETTING

The Landlord lets and the Tenant takes the Dwelling for the Term at the Rent and with the Security Deposit stated in this Tenancy Agreement together with the Furniture and Appliances.

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SPECIAL LETTING PROVISIONS

WARNING

Any Special Letting Provisions must comply with the Residential Tenancies Acts 2004 to 2016 (as amended)

1. **Part of a Development with Common Areas or Amenity Space**

1.1 The Dwelling forms part of a larger number of residential units owned by the Landlord at Beechpark, Cabinteely Dublin 18 (the "**Development**") operated and managed on behalf of the Landlord by MD Property Management (the "**Managing Agents**") which term shall be deemed to refer to these and/or such other managing agents as are appointed by the Landlord to operate and manage the Development from time to time) for the sole purpose of providing residential accommodation. Subject to clause 2.1 of these Special Letting Provisions the Managing Agents shall also be the Landlord's "Authorised Agent" for the purposes of the General Letting Provisions.

1.2 Compliance by the Tenant with regulations governing the operation and management of the Development from time to time and made available to the Tenant either by email to the email address provided by the Tenant at the outset of this Tenancy Agreement, by display within the Dwelling or as otherwise notified or communicated to the Tenant (the "**Management Regulations**") is a strict term and condition of this Tenancy Agreement. Subject to them being made available as described above, it is the responsibility of the Tenant to advise the Managing Agents of any change in email addresses for the provision of information and to familiarise himself or herself with the Management Regulations and any updates or changes to them from time to time (which the Tenant acknowledges and accepts the Landlord and/or the Managing Agents shall be entitled to do in the interests of good estate management and the efficient and effective management of the tenancy) and to ensure that he or see complies with the Management Regulations and addresses any queries as to how they apply or operate to the Managing Agents.

1.3 Strictly in conjunction with the tenancy of the Dwelling, the Tenant has the right, if and as required, to access and egress to and from the Dwelling over all entrance halls, reception areas, stairs, corridors, landings and external parts of the Development designated for such access and egress (the "**Common Areas**") and, but subject strictly to the terms and conditions of such use, to use of all or any social spaces, gyms, launderettes, bin storage, bicycle and other communal spaces made available by the Landlord to residents of the Development from time to time (each an "**Amenity Space**").

1.4 To the extent that the Tenant is not permitted to use or act or behave in or on the Dwelling in a certain way under this Tenancy Agreement or the Residential Tenancies Acts, or to allow any such use, act or behaviour, the same applies in respect of the Common Areas and each Amenity Space and all other parts of the Development.

2. **Payments**

The Tenant shall pay the Rent and any other payments at the times and in the manner set out on Page 4 of this Tenancy Agreement or as otherwise directed by the Landlord or its Authorised Agent from time to time, which may or may not be either directly to the Landlord

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or its Managing Agents (as its Authorised Agent otherwise) and may instead be to another person or entity nominated from time to time by the Landlord to accept such payments on its behalf. It is the Tenant's responsibility to ensure the correct Rent amount is paid during the Term and also to ensure payment of Rent ceases once the Tenancy Agreement is validly terminated. The Landlord cannot amend or cancel any standing orders or direct debits set up by a Tenant. The Tenant acknowledges and accepts that it shall be liable for any administrative or other costs of the Landlord in dealing with refunds of Rent in breach of this clause.

3. **Car Parking**

3.1 Where this Tenancy Agreement includes a right to use one car parking spaces/if available for the amount of **€50.00 monthly, paid with the rent** this must be specifically included in the description of the "Dwelling" and is expressly limited to:

(a) One vehicle per apartment/space allocated; and

(b) The parking of cars or other private motor vehicles for private and personal use only.

3.2 The Tenant shall respect and comply with all rules and regulations that apply to the parking of vehicles in the Development (underground) and shall not park or allow visitors to park on roads, footpaths or Common Areas of the Development or cause a nuisance or any interference with the proper use and enjoyment of those areas by others.

4. **Utilities**

4.1 With reference to clause 2.2 of the General Letting Provisions, it is the responsibility of the Tenant to pay all costs and charges for Utilities and services used and consumed by the Tenant in the Dwelling including all electricity, heating, fuel, water, telephone, wi-fi, cable and television licence fees and charges but at the end of the tenancy all accounts for Utilities and services shall be dealt with in accordance with this Special Letting Provision or as otherwise directed by the Managing Agents or the Management Regulations from time to time

4.2 Upon commencement of a tenancy, the Tenant will be registered by the Managing Agents with Pinergy (for electricity). It will be the responsibility of the Tenant to set-up the Tenant's own accounts with the various other utility and service providers.

4.3 On the termination of this Tenancy Agreement, the Tenant shall ensure at the Tenant's expense that:

(a) bills for all Utilities and services have been paid up to date;

(b) the accounts for electricity and water have been transferred back into the name of the Landlord;

(c) if the Tenant switches electricity provider during the Term, that the account has been transferred back to the original provider (Pinergy); and

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(d) all other private contracts for Utilities and services (including television, phone and wi-fi) are cancelled, where appropriate.

4.4 Unless installed by the Landlord or Managing Agents, no pre-paid meters are permitted in the Dwelling.

5. **Termination of this Tenancy Agreement**

5.1 The Landlord and Tenant agree that clause 5 of the General Letting Provisions (*Optional Break Clause*) shall apply as a term of this Tenancy Agreement irrespective of whether it has in fact been selected on page 3.

5.2 If the Tenant or any of the Tenant's visitors (including a family member) breaches any of the terms of this Tenancy Agreement including but not limited to: -

(a) failure of the Tenant and/or the Guarantor to pay any instalment of the Rent or other charges in accordance with the terms of this Tenancy Agreement;

(b) the Tenant committing any offence, indulging in drunkenness, drugs, violence, or other anti-social, unlawful or threatening behaviour or behaving in any manner which is a nuisance or danger to himself/herself or others, the Dwelling, Common Areas or any Amenity Space or any part of the Development or any personal property of the Landlord or others;

(c) the Tenant using the Dwelling, Common Areas or an Amenity Space or any part of the Development for any unlawful purpose; or

(d) repeated and persistent breach of the Agreement or the Management Regulations and policies

the Landlord will be entitled to take appropriate action to address the breaches, including but not limited to making a claim or demand of the Tenant and/or Guarantor as applicable and/or terminating this Tenancy Agreement early by notice in writing to the Tenant in accordance with the notice requirements for the relevant breach as set out under the Residential Tenancies Acts.

5.3 The Landlord also has the right to terminate this Tenancy Agreement early if the Dwelling and/or the Common Areas are not habitable or fit for purpose due to events beyond the Landlord's control (such as fire or damage).

5.4 The Tenant acknowledges and accepts that this is a legally binding agreement on its terms and the Tenant has no right to terminate this Tenancy Agreement *(before end of the fixed term as per page 3)* due to any change in personal circumstances and may only terminate this Tenancy Agreement early if the Landlord is in breach of its obligations to the Tenant under this Tenancy Agreement or the Residential Tenancies Acts and then only in accordance with the notice requirements for the relevant breach as set out under the Residential Tenancies Acts. If the Tenant serves a valid notice of termination, the Tenant must vacate the Dwelling on or before the date specified in the notice but the Tenant accepts and acknowledges that it remains liable for the Rent and other payments due under this Agreement up to the end of the notice period required for valid termination.

5.5 The effect of any valid termination of this Tenancy Agreement whether early or at the end of the Term will be to end the tenancy but will not release the Tenant from making good all loss

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or damage caused to the Landlord as a result of any breaches of this Tenancy Agreement prior to its termination. The Landlord will still be entitled to pursue all outstanding payments, charges and claims under this Tenancy Agreement.

5.6 Where the Landlord terminates this Tenancy Agreement early in accordance with its terms the Landlord will not be liable for any claims, costs or compensation, inconvenience or otherwise to the Tenant.

6. **Departure from the Dwelling**

6.1 Tenant agrees to immediately vacate the Dwelling at the end of the Term (or, if this Tenancy Agreement is validly terminated early, on the relevant termination date)and to remove all personal effects and belongings from the Dwelling and the Development and to return all keys, fobs, security and/or access cards to the Managing Agents, leaving the Dwelling clean, tidy and in the condition it was in at the commencement of the Term (normal wear and tear excepted). Failure to do so will result in the Landlord being entitled to:

(a) either store and/or dispose of (at its discretion) any personal effects or belongings, including bicycles, of the Tenant left in the Dwelling or elsewhere in or on the Development at the end of the Term without any liability to the Tenant; and/or

(b) charge the Tenant for associated costs including cleaning and/or repair and/or storage and/or disposal and/or administrative costs

Until all such personal effects and belongings are removed and the Dwelling is returned to the expected condition.

7. **Decoration, Maintenance, Alterations & Waste**

7.1 While living in the Dwelling the Tenant shall comply with the following requirements:

(a) no nails, thumb tacks or other fixings/adhesives are to be used (including Sellotape, blue tack or masking tape) or applied on or to the walls;

(b) no repairing, painting or decorating of the internal walls, wood or other surfaces or any part of the Dwelling whatsoever is to be initiated without the prior consent in writing of the Landlord (not to be unreasonably withheld);

(c) work surfaces, floors, carpets and furniture should be cleaned/ maintained on a regular basis;

(d) all rooms in the Dwelling should be appropriately aired;

(e) light bulbs should be replaced when necessary at the Tenant's own expense;

(f) <u>no smoking is to take place in the Dwelling (including on any balcony) or the internal Common Areas or Amenity Spaces;</u>

(g) bicycles should not be brought into or stored in the Dwelling (including on any balcony)or the internal Common Areas or any Amenity Space (other than a bicycle storage facility if one is available as an Amenity Space within the Development);

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(h) to use sinks, showers, toilets and Appliances responsibly and not to block or obstruct any of the waste water pipes, sewage pipes or drains serving the Dwelling with cooking oils or other fats, baby wipes, ear buds, nappies or any other item or substance;

(i) where the Dwelling contains a boiler, it is the responsibility of the Tenant to keep the boiler pressure at the appropriate level and also to bleed the radiators if at any stage of the tenancy they become air-locked;

(j) mattress protectors provided by the Landlord must be kept on the mattresses at all times to avoid stains or damage to mattresses;

(k) any service providers or contractors engaged by the Tenant in respect of the Dwelling to clean, maintain, decorate, tend to the garden, collect waste or otherwise are to be approved in advance by the Landlord or the Managing Agents (such approval not to be unreasonably withheld); and

(l) any Furniture and Appliances damaged by the Tenant (*ie* not due to normal wear and tear) must be notified to the Landlord and replaced by the Tenant at the Tenant's own expense with the same item of Furniture or Appliance (and if the same is not available, any proposed substitute must be agreed in advance with the Landlord, acting reasonably).

7.2 Without prejudice to the Landlord's rights generally, if the Tenant does not comply with the requirements set out above the Tenant accepts and acknowledges the Landlord's right to pass on to the Tenant the cleaning and other charges, expenses and any loss and damage that the Landlord incurs in addressing the Tenant's failure to comply in accordance with

7.3 There is an Owner's Management Company (the "**OMC**") in place for the Development, which, among other matters, regulates refuse and waste storage and collection for the Development. The Tenant must comply with all requirements of the OMC from time to time (which shall be deemed to be incorporated in the Management Regulationsfor the Dwelling) with regard to refuse and waste management for the Dwelling and the use and enjoyment of any Common Areas and Amenity Space. Keeping or storing refuse or waste other than in accordance with the OMC requirements (being part of the Management Regulations) or dumping of refuse or waste or Personal Property (as defined below) in or on the Dwelling or any part of the Development shall be considered a serious breach of this Tenancy Agreement.

8. Safety & Security

8.1 Responsibility for security of the Dwelling rests with the Tenant. The Tenant also agrees to comply with the Management Regulations and all policies issued by the Landlord for the management, operation, safety and security of the Dwelling, the Common Areas, each Amenity Space and the Development and as part of which must:

(a) report all security incidents to Managing Agents;

(b) notify the Managing Agents if the Dwelling is to be left vacant for more than 14 days;

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(c) not part with the possession of any keys, fobs, access or security cards provided by the Landlord for the Dwelling, make any duplicates or mark them keys with anything that relates it to the Development and must report any loss immediately to the Managing Agents;

(d) leave the Dwelling and the Development secure at all times and must not prop open or block locks on the door to the Dwelling or to any Common Areas or Amenity Space;

(e) not cover wall vents/fans in toilets and kitchens, as these are required for ventilation under Building Regulations;

(f) not smoke (including electronic cigarettes) or charge any electronic cigarettes in the Dwelling or any part of the Development or bring any other smoking paraphernalia such as shisha pipes or hookahs into the Dwelling or any part of the Development;

(g) not bring any cooking equipment (whether electrical, gas, using a naked flame or otherwise) into the Dwelling or the Development that have the potential to cause a fire or other hazard and must not prepare food or undertake any cooking in the Dwelling or any part of the Development except in the designated kitchen area to which the Tenant has access;

(h) not overload electrical sockets or use unsafe electrical equipment;

(i) not obstruct the Common Areas or any parts of the Development including fire escapes routes and must not leave any items outside the Dwelling or any Amenity Space or on the Common Areas;

(j) test all smoke and other alarms in the Dwelling on a regular basis and replace batteries as necessary;

(k) respond to all fire alarms and comply with all fire regulations and evacuation procedures;

(l) not tamper with any fire alarms or equipment or fire doors which are designed to reduce the spread of fire and to help prevent injury or death;

(m) not store or keep anything in the boiler room in the Dwelling; and/or

(n) not store or keep or permit to be kept in the Dwelling or in any part of the Development any dangerous, combustible including candles or unlawful substances or materials whatsoever and report immediately the presence of such substances or materials.

9. **Personal Property and Contents Insurance**

Contents, valuables, vehicles or personal belongings ("**Personal Property**") brought into the Dwelling or any other part of the Development by the Tenant or any other person are brought into and kept in the Dwelling or on any other part of the Development at the sole risk of the Tenant or other person who owns them. The Landlord shall have no liability

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whatsoever in relation to any such Personal Property and putting in place insurance to cover the Tenant's Personal Property shall be solely a matter and expense for the Tenant.

10. **Balconies and Gardens**

10.1 Save as provided for in this clause, the Tenant's rights and obligations under this Tenancy Agreement and the Residential Tenancies Acts in respect of the Dwelling extend and apply to any balcony and/or garden enjoyed with and forming part of the Dwelling.

10.2 Balconies should not be used to store (whether temporarily or permanently) bicycles or other items or Personal Property (as defined above) at any time during the Term.

11. **Pets**

Pets are allowed under the rules of the pet policy / one small or medium pet (only) to be kept by the Tenant in or on the Dwelling. Please refer to the Pet Policy attached.

12. **Prohibited Uses and Conduct**

12.1 The Tenant must comply with any code of conduct in place for the Development as part of the Management Regulations and must not bring into the Dwelling or any part of the Development any weapons, illegal items or items which the Landlord considers offensive or dangerous (which may include replica, ceremonial or toy weapons, knives, martial arts weapons or air weapons) or allow the Dwelling to be used for any criminal, immoral or illegal purpose including (but not limited to) selling, supplying or using illegal substances, storing or handling stolen goods or prostitution.

12.2 The Dwelling is to be used as a private residential dwelling such that no business, trade or profession is to be run from it and the Tenant is prohibited from operating as an "Airbnb" or inviting or accommodating paying guests in any form.

12.3 The number of persons entitled to ordinarily reside in the Dwelling at any one time is restricted strictly to the number of persons who have signed this Tenancy Agreement as Tenant. The right of any other person to ordinarily reside in the Dwelling is subject strictly to the consent of the Landlord.

13. **Landlord Works**

In addition to its rights and obligations to repair the Dwelling under the Residential Tenancies Acts the Landlord has the right to carry out any works whatsoever (whether in the nature of development, alteration, installation, refurbishment, repair, maintenance, decoration, health and safety works or otherwise) to the Development (including the Common Areas or Amenity Space) and/or any adjoining property of the Landlord.

14. **Boiler & Heat Pump Service**

The Landlord will arrange to have the boiler or heat pump (whichever is present) for the Dwelling serviced by an accredited service provider on a yearly basis.

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15. **Operational Matters: Queries, Requests, Applications& Notices**

15.1 All communications by the Tenant in respect of operational matters including notifications to the Landlord of the identity of each person residing in the Dwelling in accordance with clause 2.2 of the General Letting Provisions; damage, defect or repair notifications in accordance with clause 2.6 of the General Letting Provisions;applications for consent to assign or sub-let in accordance with clause 2.17 of the General Letting Provisions;requests for replacement keys, fobs or access cards; and queries on operation of the Appliances should be made by the Tenant to the Managing Agents using the contact details and in the manner set out in the Management Regulations from time to time.

15.2 The Tenant accepts and acknowledges that certain requests will result in a charge to the Tenant in accordance with the Management Regulations and that the Landlord shall be entitled, in accordance with s17(3) of the 2004 Act, to the costs and expenses reasonably incurred by it in making a decision on any application to it for consent under s16 of that Act.

16. **Completion of Agreement**

16.1 This Tenancy Agreement may be executed in any number of counterparts, each of which shall be an original and all of which, when taken together, shall constitute the same Agreement.

16.2 Each party agrees that transmission by email in PDF or JPEG format (or such other format as is agreed by the Landlord) of a complete counterpart of this Agreement executed in that way has the same effect as if an original were handed over.

17. **Applicable Legislation**

The Landlord and Tenant acknowledge and agree that:

(a) all references to the Residential Tenancies Acts in this Tenancy Agreement or to any sections or sub-sections of it are to the Residential Tenancies Acts 2004 to 2019 and includes any amendments or re-enactments of it for the time being in force so as to apply to this Tenancy Agreement;

(b) the current Housing (Standards for Rented Houses) Regulations are the 2019 Regulations, introduced with effect from and including 1 May 2019 rreplacing the Housing (Standards for Rented Houses) Regulations 2017; and

(c) these Special Letting Provisions shall be read and interpreted in accordance with the requirements of the Residential Tenancies Acts, if any, in respect of the relevant right, matter or obligation and take precedence over the General Letting Provisions in the event of any conflict between them.

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GENERAL LETTING PROVISIONS

1. DEFINITIONS AND INTERPRETATION

In this Tenancy Agreement:

1.1 **ACTS** are the 2004 Act, the 2009 Act, the 2015 Act and the 2016 Act as herein defined.

1.2 **A RIGHT** given to the Landlord to enter the Dwelling extends to any person(s) authorized in writing, acting on the Landlord's behalf, and includes the right to bring workmen and appliances into the Dwelling.

1.3 **ALTER OR IMPROVE** in relation to the Dwelling, includes:

(a) altering a locking system on a door giving entry to the Dwelling; and

(b) making an addition to, or alteration of, a building or structure (including any building or structure subsidiary or ancillary to the Dwelling).

1.4 **AUTHORISED AGENT** is the person listed herein who is the person authorized by the Landlord to act on the Landlord's behalf in relation to the tenancy. The contact details of the Agent are as set out on page four herein. It shall also include such other person as during the terms of the tenancy is identified by the Landlord as acting on his or her behalf in writing to the Tenant.

1.5 **AUTHORITY** in writing given to any person(s) acting on the Landlord's behalf to enter the Dwelling after giving notice extends, in case of emergency only, to entry after giving less notice than specified or without giving any notice.

1.6 **BEHAVE IN A WAY THAT IS ANTI-SOCIAL** means engage in behavior of a kind specified in section 17(1) of the 2004 Act (as amended).

1.7 **DWELLING** means dwelling as defined by Section 4(1) of the 2004 Act (as amended) and where relevant includes any out office, yard, garden or other land appurtenant to the Dwelling or usually enjoyed with it.

1.8 **FURNITURE AND APPLIANCES** means the furniture and appliances listed in the last page of this contract.

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1.9 **INTEREST** means a payment at the rate of 3% per annum over the rate charged on arrears of income tax for the time being.

1.10 **PUBLIC AUTHORITY** includes a local authority.

1.11 **PUBLIC AUTHORITY CHARGES** includes rates, water rates, waste charges and any other charges introduced by the relevant local authority in relation to levies on the Dwelling.

1.12 **RENT** includes any payments or charges for which the Tenant is liable under the terms of this Tenancy Agreement.

1.13 **RENT PAYMENT DATE** shall be the date on which the rent is payable commencing on the date set out on page 4 herein and thereafter the rent to be paid monthly.

1.14 **THE 2004 ACT** means the Residential Tenancies Act 2004 as amended from time to time.

1.15 **THE 2009 ACT** means the Housing (Miscellaneous Provisions) Act 2009 as amended from time to time**.**

1.16 **THE 2015 ACT** means the Residential Tenancies (Amendment) Act 2015 as amended from time to time.

1.17 **THE 2016 ACT** means the Planning and Development (Housing) and Residential Tenancies Act 2016 as amended from time to time.

1.18 **THE LANDLORD** means the person for the time being entitled to receive (otherwise than as agent for another person) the rent paid in respect of a dwelling by the tenant, including, where the context so admits, a person who has ceased to be so entitled by reason of the termination of the tenancy.

1.19 **THE TENANT** means the person for the time being entitled to the occupation of the dwelling under this tenancy agreements defined by section 5 of the 2004 Act (as amended).

1.20 **UTILITIES** include, but is not limited to, electricity, gas, heating, cable television, telephone and any ISDN line or other connection for data in the dwelling.

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1.21 **PROPER STATE OF STRUCTURAL REPAIR** means sound, internally and externally, with roof, roofing tiles and slates, window, floors, ceilings, walls, stairs, doors, skirting boards, fascia, tiles on the floor, ceiling and wall, gutters, downpipes, fittings, furnishings, gardens and common areas maintained in good condition and repair and not defective due to dampness or otherwise.

2. THE TENANT AGREES WITH THE LANDLORD:

2.1 To pay the Rent on the Rent Payment Date without deduction or set off (except otherwise permitted in law) to the Landlord, or their Authorised Agent, subject to any deduction of tax as required by law as more particularly outlined in clause 4.3, at the time and in the manner stated in this Tenancy Agreement.

2.2 To pay any Public Authority Charges and the cost for any Utilities or other services used in respect of the Dwelling which are the responsibility of the Tenant and at or before the end of this Tenancy Agreement to give the Landlord all account numbers to enable the transfer of accounts.

2.3 On the signing of this Tenancy Agreement to pay to the Landlord or to their Authorised Agent the security deposit as stated in this Tenancy Agreement. This is refundable at the end of the Tenancy subject to the Tenant complying with the Tenant's obligations under this Tenancy Agreement. **The Tenant acknowledges that the Security Deposit cannot be used for the payment of Rent without the prior agreement in writing of the Landlord.**

2.4 To pay any stamp duty chargeable on the original and counterpart of this Tenancy Agreement.

2.5 To allow the Landlord access to the Dwelling at reasonable intervals and at a date and time agreed in advance with the Tenant, for the purposes of:

(a) Inspecting the Dwelling;

(b) Carrying out any works or repairs which are the responsibility of the Landlord;

(c) erecting or fixing a notice on the outside of the Dwelling for the purposes of obtaining planning permission in the manner prescribed by law and for all purposes incidental to complying with the Planning Acts in force;

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(d) Erecting a for sale or for let notice on the exterior of the Dwelling and to enter with not more than two other persons to view the property (this right to be exercised only in the last four weeks of the Tenancy);

(e) Inspecting, repairing or cleaning neighbouring property, or any sewers, drains, pipes, wires or cables serving neighbouring property.

2.6 To notify the Landlord promptly of any defect or damage that arises in the Dwelling or the Furniture and Appliances which the Landlord is obliged to repair and to allow the Landlord or an Authorized Agent access to the Dwelling in order to replace or carry out the required repairs subject to the Landlord leaving the Dwelling in the condition it was in upon the Landlord entering the Dwelling.

2.7 To ensure that no act or omission by the Tenant, or by any other person or visitor in the Dwelling with the Tenant's consent, results in a breach of the Landlord's legal obligations including any planning obligations.

2.8 To facilitate access without the need for prior notice, to the Dwelling by the Landlord or their Authorized Agent in the case of emergency only.

2.9 To take good care of the Dwelling and the Furniture and Appliances and to keep them all clean and tidy and not to cause or allow anyone else to cause any damage to them and not to allow anything to obstruct the sewers or drains.

2.10 Not to do any act that would cause a deterioration in the condition the Dwelling, the Furniture or the Appliances were in, at the commencement of the Tenancy or in the case of Furniture or Appliances having been replaced, at the time when that replacement takes place, but there shall be disregarded, in determining whether this obligation has been complied with at a particular time, any deterioration in that condition owing to normal wear and tear, that is to say wear and tear that is normal having regard to:

(a) the time that has elapsed from the commencement of the Tenancy, the extent of occupation of the Dwelling the Landlord must have reasonably foreseen would occur since that commencement, the normal use of the Dwelling, the Furniture and the Appliances; and

(b) any other relevant matters.

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2.11 If the obligations set out in Clauses 2.10 and 2.11are not complied with, to take such steps as the Landlord may reasonably require to restore the Dwelling, Furniture and Appliances to the condition mentioned in Clause 2.11 or to defray any costs incurred by the Landlord in his or her taking such steps as are reasonable for that purpose.

2.12 To repair any broken glass in the windows of the Dwelling where such repair is necessitated due to the failure of the Tenant to comply with Clause 2.10 or 2.11.

2.13 Not to use, nor allow others to use, the Dwelling, or any part of it, for activities which are dangerous, offensive, noxious, noisome, illegal, or which are or may become a nuisance or annoyance to the Landlord or the Landlord or occupier of any neighboring property or which are in breach of any obligations with the management company (if applicable).

2.14 Not to behave within the Dwelling, or in the vicinity of it, in a way that is anti-social, nor to allow anyone else to do so.

2.15 To co-operate with the Landlord if it becomes necessary for the Landlord to enforce the Tenant's obligations under the tenancy in order to comply with Section 15 of the 2004 Act (as amended).

2.16 Not to do or allow to be done anything that could cause any policy of insurance in relation to the Dwelling to become void or voidable, nor do or fail to do anything by which additional insurance premiums may become payable. The Tenant agrees to insure the Tenant's contents under a separate policy of insurance.

2.17 Not to assign or sub-let the Dwelling without the prior written consent of the Landlord (which consent the Landlord may, in his discretion, withhold).

2.18 Not to alter or improve, nor allow others to alter or improve, the Dwelling (including the locks and alarm systems and any wiring or cabling there) nor affix any item whatsoever to the walls of the Dwelling **not to erect any television or radio aerial or satellite dish there without the prior consent in writing of the Landlord or their Authorised Agent** (such consent the Landlord may, in his discretion, withhold). For the purposes of clarity the consent of the Landlord may not be unreasonably withheld if the alteration proposed by the Tenant consists only of repairing, painting and decorating the Dwelling.

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2.19 To use the Dwelling as a private residence only for the named Tenant unless otherwise authorized by the Landlord in the special conditions outlined in this Tenancy Agreement. The Tenant agrees not to accept any paying guests in the Dwelling.

2.20 **To notify the Landlord in writing of the identity of each person who for the time being ordinarily resides in the Dwelling.**

2.21 Not to obstruct any means of access leading to the Dwelling.

2.22 Unless the Landlord or his Authorized Agent gives prior approval in writing, not to keep any pets in the Dwelling and in accordance to the pet policy.

2.23 Not to hang any washing out of the windows, or on the balcony, if any, of the Dwelling.

2.24 Not to display any notice or advertisement either on the outside of the Dwelling or visible from outside it.

2.25 To give promptly to the Landlord or his Authorized Agent a copy of any notice received concerning the Dwelling.

2.26 To comply, in the case of a managed estate, with the rules and regulations of the management company of the estate insofar as they pertain to the conduct by act or omission of the Tenant.

2.27 When the tenancy ends, to return possession of the Dwelling including Furniture and Appliances to the Landlord, leaving them in the condition provided for at Clause 2.11 including cleaning same and to remove all refuse.

2.28 Not to cause any of the Utilities to be disconnected and if so disconnected as a result of the Tenants conduct to pay any fees in reconnecting same.

2.29 To keep the Dwelling secure and notify the Landlord in writing in advance if the Tenant is to allow the Dwelling to be vacant for more than 14 consecutive days.

2.30 To pay to the Landlord all costs, damages or losses incurred by him as a result of the breach of the Tenant of the terms of this Tenancy Agreement.

2.31 The Tenant agrees to refrain from smoking in the interior of the Dwelling and to prevent others from doing so.

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3. THE LANDLORD AGREES WITH THE TENANT:

3.1 Subject to the payment of rent and the Tenant observing the terms of this Tenancy Agreement the Tenant shall enjoy peaceful and exclusive occupation of the Dwelling.

3.2 To keep the Dwelling in a Proper State of Structural Repair as defined in the Housing (Standards for Rented Houses) Regulations 2017 (S.I. No. 17 of 2017) and to carry out all other repairs as the Landlord is obliged to do under this Tenancy Agreement or the 2004 Act (as amended).

3.3. To maintain a policy of insurance in respect of the structure of the Dwelling as required by section 12(1)(c) of the 2004 Act and the Landlord's contents only, as specified in the First Schedule hereto.

3.4 To pay promptly to the Tenant at the end of the Tenancy any deposit that he or she has paid except any portion that the Landlord is entitled to retain, to cover:

(a) any arrears of rent; and

(b) any breach by the Tenant of Clauses 2.10 and 2.11 and the costs incurred by the Landlord in making good any such breach.

3.5 To reimburse the Tenant for all reasonable and vouched expenses incurred by the Tenant in carrying out repairs where the Landlord has failed to maintain the interior of the Dwelling and the fittings in the Dwelling but only in such circumstances where the Landlord has refused the Tenant's request to carry out such repairs, where the postponement of the repairs would have been unreasonable as they constituted a risk to health and safety or materially affect the Tenant or any other occupant's quality of the living environment.

3.6 Where the Dwelling is part of an apartment complex, or regulated by a management company to forward on the Tenant's behalf any complaints that the Tenant may have in the management of the development to the management company and to furnish the Tenant with a copy of any response from the management company and/or the statement from the management company as to the steps they will take to rectify the matter to which the complaint relates.

3.7 To make good any damage caused to the Dwelling, the Furniture or the Appliances by any person allowed access by the Landlord.

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3.8 To provide receptacles suitable for the storage of refuse outside the Dwelling save where the provision of such receptacles is not within the power or control of the Landlord in respect of the Dwelling.

3.9 To register this Tenancy Agreement with the Residential Tenancies Board within the timeframes prescribed by the Acts.

4. <u>THE PARTIES AGREE:</u>

4.1 Any notice to be served or given may be served on or given to the Landlord or the Tenant in one of the following ways:

(a) by delivering it to the Landlord/Tenant personally;

(b) by leaving it at the address at which the Landlord/Tenant ordinarily resides;

(c) by sending it by post in a prepaid letter to the address at which the Landlord/Tenant ordinarily resides which in the case of the Tenant shall be presumed to be the address of the Dwelling unless a different address is notified in writing to the Landlord or their Authorised Agent

(d) In the case of the Landlord by adopting any of the foregoing methods to apply to the Landlord's Authorised Agent.

4.2 If the Tenant proposes to create a sub tenancy, the Tenant is obliged to inform the person with whom he is intending to create the agreement that the nature of the tenancy is a sub-tenancy. The Tenant must obtain the Landlords prior written consent (such consent not to be unreasonably withheld) before entering into a sub-tenancy agreement.

4.3 If the Landlord is non-resident and the Rent is not payable to an Authorised Agent in the State, the Tenant shall deduct or withhold from the Rent all taxes as required by law. He or she shall account to the Revenue Commissioners for such taxes and furnish evidence to the Landlord of their payment. Each party will give the other all information necessary to enable these procedures to operate according to law and to vouch the payment of these taxes to the Revenue Commissioners.

4.4. The information required under the Housing (Rent Books) Regulations, 1993 (as amended) is set out in the Second Schedule and this Tenancy Agreement constitutes the Rent Book for the purposes of those Regulations.

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4.5 This is a fixed term tenancy and termination by either party must be in accordance with the terms of the Acts. This tenancy may not be terminated unless there has been a breach of obligations by the Landlord or the Tenant unless Clause 5 applies to this tenancy agreement, in which case the provisions relating to termination of tenancies under the Acts apply. If the Tenant intends to extend his tenancy at the end of the fixed term he must notify the Landlord not later than one month or sooner than three months prior to the expiration of the Term.

4.6 **WHEREVER** more than one person is the Tenant, all their obligations can be enforced against them jointly and severally which may result in each of them individually being liable to the Landlord for the Tenant's obligations under this Tenancy Agreement, and each is jointly and severally entitled to enforce the Landlord's obligations.

5. OPTIONAL BREAK CLAUSE

5.1 If the Parties agree to include the within clause in this Tenancy Agreement, by selecting that option on page 3 of this Tenancy Agreement, then notwithstanding that this Tenancy Agreement provides for a fixed term, the Landlord may terminate this Tenancy Agreement under the terms provided for in the Acts.

5.2 This does not affect the operation of Part 4 of the 2004 Act (as amended).

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FIRST SCHEDULE
FURNITURE, APPLIANCES AND CONTENTS

In accordance with the Housing Miscellaneous Provisions Act, 2009, the Housing (Standards for Rented Houses) (Amended) Regulations 2009 and the Housing (Standards for Rented Houses) Regulations 2008 the Landlord must provide the following:

1. A fire blanket and either a mains wired smoke alarm or at least two ten year self-contained battery operated smoke alarms
2. Each self-contained house and multi-unit building should contain a mains wired smoke alarm and fire blanket and emergency evacuation plans
3. Emergency lighting shall be provided in all common areas within a multi-unit building
4. Four ring hob, oven and grill
5. Cooker hood or extractor fan
6. Fridge and freezer or a fridge/freezer
7. Microwave oven
8. Sink and fixed bath or shower with piped supply of cold water
9. Facility for the piped supply of hot water
10. Suitable and adequate number of kitchen presses for food storage purposes
11. Washing machine or access to a communal washing machine facility within the cartilage of the building
12. A dryer if the dwelling does not contain a garden or yard for the exclusive use of that dwelling.

From 1 July 2017, the Housing (Standards for Rented Houses) Regulations 2017 Regulations will amend this list as follows:

1. A suitable self-contained fire detection and alarm system as well as a suitable located fire blanket;
2. Each self-contained house in a multi-unit building must contain a suitable fire detection and alarm system and an emergency evacuation plan;
3. A suitable fire detection and alarm system in common areas of a multi-unit building and Emergency lighting in all common areas within a multi-unit building that complies with standards produced by the National Standards Authority of Ireland for Fire Detection and Fire Alarm Systems in Buildings and For Emergency lighting.
4. 4 ring hob, oven and grill
5. Cooker hood or extractor fan
6. Fridge and freezer or a fridge/freezer
7. Microwave oven
8. Sink and fixed bath or shower with piped supply of cold water
9. Facility for the piped supply of hot water
10. Suitable and adequate number of kitchen presses for food storage purposes
11. Washing machine or access to a communal washing machine facility within the cartilage of the building
12. A dryer or access to a communal dryer if the dwelling does not contain a garden or yard for the exclusive use of that dwelling.

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SECOND SCHEDULE

STATEMENT OF INFORMATION REQUIRED UNDER THE HOUSING (RENT BOOKS) REGULATIONS, 1993 (SI No 146 of 1993) (as amended)

1. This statement of information is in accordance with the Housing (Rent Books) Regulations 1993 as amended. It does not purport to be a legal interpretation.

2. The tenant of a house is entitled to enjoy peaceful and exclusive occupation of the house provided that the Tenant complies with the obligation to pay rent and observes the other terms of this Tenancy Agreement.

3. Notice of termination of a tenancy must be in writing and must be made in accordance with the provisions of the 2004 Act, the 2015 Act and the 2016 Act

4. The landlord is prohibited from impounding the goods of a tenant to secure recovery of rent unpaid.

5. The landlord is obliged to provide a tenant with a rent book for use throughout the term of the tenancy. The landlord must enter the particulars relating to the tenancy in the rent book, and, in the case of a new tenancy, complete the inventory of furnishings and appliances supplied with the house for the tenant's exclusive use.

6. The landlord is obliged to keep the particulars in the rent book up to date. Where the rent or any other amount due to the landlord under the tenancy is handed in person by the tenant, or by any person acting for the tenant, to the landlord, the landlord must, on receipt, record the payments in the rent book or acknowledge it by way of receipt. Payments not handed over directly, for example, those made by banker's order or direct debit, must, not more than three months after receipt, either be recorded by the landlord in the rent book or acknowledged by way of statement by the landlord to the tenant.

7. The tenant is obliged to make the rent book available to the landlord to enable the landlord to keep the particulars in it up to date.

8. The landlord of a rented house is obliged to ensure that the house complies with the minimum standards of accommodation laid down in the housing (Standards for Rented Houses) Regulations 2008 (S.I. No. 534 of 2008) as amended. The Regulations do not apply to houses let for the purpose of a holiday, housing authority demountable houses and communal type accommodation provided by the health Service Executive and certain approved non-profit or voluntary bodies. With the exception of Article 8– Food Preparation, Storage and Laundry – the Regulations also apply to houses let by housing authorities. The standards relate to structural condition, the provision of sanitary, heating and refuse facilities, food preparation, storage and laundry, availability of adequate lighting and ventilation, fire safety and the safety of electricity and gas installations.

9. The duties of a landlord referred to in paragraphs 5 to 8 above may be carried out on the landlord's behalf by a duly appointed agent. Any reference in a statement to "house" includes a flat or maisonette.

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10. Copies of the Housing (Rent Books) Regulations 1993, the Housing (Standards for Rented Houses) Regulations 2008 and the Housing (Standards for Rented Houses) (Amendment) Regulations 2009 may be purchased from the government Publications Sales Office, Sun Alliance House, Molesworth Street, Dublin 2 or form the housing authority.

11. Responsibility for the enforcement of the law relating to rent books and standards rests with the housing authority for the rear in which the house is located. The name, address and telephone number of the relevant housing authority.

SIGNED by the Landlord/Agents in the presence of:

MD Property

12 February 2022

DocuSigned by:
MARK DUNLEAVY
86F257737DED4CD...
MARK DUNLEAVY

SIGNED by the Tenant in the presence of:

14 February 2022

DocuSigned by:
BCFCE7B9359C462...
Srijan Pandey

DocuSigned by:
Manoj kumar shukla
D730AEAD8C574BE...
Manoj kumar shukla

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38 Upper Baggot Street
Dublin 4
D04 A2P2

phone: + 353 1 660 7803
fax: + 353 1 660 7852

info@mdproperty.ie

Beechpark

HOUSE RULES

1. All residents and visitors to Beechpark shall comply with and observe the House Rules and regulations concerning your apartment, and all internal and external common areas.

2. All residents and visitors to Beechpark must not engage in any anti-social behaviour, nuisance behaviour, or any behaviour that causes harassment, alarm or distress, or behaviour which adversely affects the quality of life of other residents. Anti-social behaviour **will not be tolerated** and will constitute a breach of your tenancy agreement with Dún Laoghaire Rathdown County Council. All residents are entitled to the quiet and peaceful enjoyment of their home. Dún Laoghaire Rathdown County Council and MD Property Management will take all avenues available to enforce this rule – up to and including legal action where deemed necessary.

3. Residents are responsible for the behaviour of their visitors to their apartment.

4. Amenities within the development must be kept in a clean and tidy condition and are for residents only. Those tenants found to be in breach of their tenancy agreements will not be permitted to use the amenity spaces including the gymnasium.

5. All residents and visitors to Beechpark must not damage the common areas or interfere with any fire safety equipment, including fire doors, stairwells, signage, or do any act or omission which creates a danger to the well-being of any resident or to his or her belongings. Any damage to common areas will constitute a breach of your tenancy agreement and **will not be tolerated**.

6. All stereos, radios and TV appliances must be kept at a volume which will not interfere with your neighbours' quiet and peaceful enjoyment of their apartment. This includes the playing of musical instruments, loudspeakers, mechanical noise, and any other noise that may cause annoyance to the other residents or residents living near the development. There must be no unreasonable noise audible from any property at any time, and in particular between 10.00pm and 9.00am.

7. In the interests of the quiet enjoyment of all residents, noise in the common areas is to be kept to a minimum. Children must be supervised and kept under control within the common areas. Furniture and other facilities must not be interfered with. Every effort should be made to keep the common areas and grounds clean and tidy. The playing of ball games is prohibited.

8. All doors, including front doors should be closed quietly. The main hall doors should be kept closed at all times. To protect the security of Beechpark, residents are requested not to allow entry to ANYBODY except your own personally invited guests/visitors. Please report any suspicious activity to Cabinteely Garda Station.

9. To prevent a trip hazard and ensure clear fire escape routes, no obstruction of any kind shall be placed in the common areas e.g. bicycles, prams/buggies, baggage, refuse bags etc. Communal storage of items will not be permitted. Internal common areas include halls, stairs, lifts, and

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landings. Bicycles/Prams/Buggies/items of furniture must not be rested against or chained to banisters, railings or left in the internal or external common areas. MD Property Management reserves the right to remove any such offending items, without notice.

10. In accordance with your tenancy agreement with the Council, a no pet policy will apply to the development. Horses, poultry, pigs, large birds, reptiles, dogs or cats or other animals likely to create a nuisance or become a source of annoyance are not permitted. (an exception to this will be registered dogs for the visually impaired and certified companion dogs with supporting documentation. Permission must be obtained in writing from the Council in advance).

11. No trade or business whatsoever may be carried out from any apartment.

12. Loitering or allowing others to loiter or create nuisance is not permitted.

13. Residents shall not hang or permit to be hung or exposed any clothes or other articles on balconies or any external area of the development. Bicycles are also not to be stored to balconies and must only be stored in the bike storage rooms available.

14. Residents shall not erect any external wireless or television serial, satellite dish or other like instrument on the demised apartment or the external or internal common areas.

15. Residents shall not display notices or posters in windows or on balconies.

16. For safety reasons, barbecues are not permitted in Beechpark.

17. Windows should always be kept clean and in good repair.

18. Sub-letting is prohibited.

19. Sub-letting of allocated parking spaces is prohibited.

20. Residents shall not place refuse in any area of the development other than the allocated bin stores in the basement. All refuse should be contained in a manner which does not result in spillage during transport to the refuse area.

21. Residents shall not permit any water or liquid to soak through the floor of the apartment.

22. No alterations or building work of any nature is allowed inside the unit or on the balcony of each unit.

23. Cars should be parked carefully in your allocated spaces. Caravans and trailers are prohibited. Only vehicles of an appropriate size are allowed i.e. that only occupy one car parking space at any given time and must have a valid parking permit displayed at all times.

24. The Local Authority and/or MD Property has the right to remove any abandoned vehicles.

25. Residents must notify the MD Property Management immediately if key fobs keys are lost or stolen. Replacement key fobs will only be issued by the MD Property upon payment of the requisite fee.

It is in every person's interest that these regulations are complied with and by cooperating fully, the comfort and wellbeing of all residents will be assured.

DocuSigned by:
Manoj kumar shukla
D730AEAD8C574BE...

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GUARANTEE

I/We

at the request of the Tenant and in consideration of this Tenancy, agree with the Landlord that the Tenant will at all times pay the rent and comply with the terms of this Tenancy Agreement and agree to indemnify the Landlord against all losses incurred by any failure by the Tenant to comply with the terms of this Tenancy Agreement. Even if the Landlord gives the Tenant extra time to comply with any obligations in this Tenancy Agreement, or does not insist on its strict terms, this covenant remains fully effective.

Date:

SIGNED by the said

in the presence of: _____

SIGNED by the said

in the presence of: _____